

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION RULING

The Data Protection Authority decides on the application of Erna A***, BA, MA (Applicant), dated November 6, 2019, for the issuance of a permit pursuant to § 7 DSG for the processing of personal data for scientific purposes by accessing the "Operational Diaries of the Mudslide Disaster in R*** Valley 201*" held by the District Administration N***, Styria, for the purpose of case analysis in the context of preparing a dissertation:

- The Application is rejected.

Legal bases: § 7 para. 2 no. 1, para. 3 and 4 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended, in conjunction with § 13 para. 3 of the General Administrative Procedure Act 1991 (AVG), Federal Law Gazette No. 51/1991 as amended, as well as § 2b no. 12 and § 2d para. 7 of the Research Organization Act (FOG), Federal Law Gazette No. 341/1981 as amended.

REASONING

A. Submissions of the Applicant and Procedural History:

1. In an email dated November 6, 2019 (also the date of receipt at the Data Protection Authority), the Applicant submitted the following (bold in the original):

"Dear Sir or Madam,

I hereby request a permit for the processing of personal data for scientific purposes.

Specifically, the request concerns the collection of operational diaries/protocols that were created during the mudslide disaster in R*** Valley 201* (A***dorf, J***hausen) and are available at the District Administration N*** (Styria). After consulting with the relevant authorities, I can access these documents upon receipt of a decision from your side.

The purpose of use is a case analysis of the mudslide event as part of my dissertation project at B**** University ****. Anonymization and the protection of personal data will be ensured.

Best regards and a kind request for processing my concern,

Erna A***"

2. The Data Protection Authority issued a procedural order with a letter dated November 27, 2019, GZ: DSB-D202.241/0001-DSB/2019 containing the following:

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"Subject: Deficiency Rectification Order

Your application submitted to the Data Protection Authority on November 6, 2019, is deemed deficient for the following reasons (not approvable in its current form) and requires improvement:

A) Question of the necessity for approval of the project:

According to § 7 para. 3 DSG, the Data Protection Authority must grant approval for the processing of personal data for scientific or historical research purposes in the public interest under specifically defined conditions, if the processing cannot be based on one of the grounds according to § 7 para. 1 and 2 DSG. Therefore, the Data Protection Authority can only "approve" access to files, other official documents, or archival materials to the extent that it constitutes a step in the process of data processing according to Art. 4 no. 2 GDPR. In particular, the Data Protection Authority cannot compel a custodian of files, other official documents, or archival materials to grant access to a researcher (see also below, point B 4.). This archival legal question must be clarified before submitting an application according to § 7 para. 3 DSG.

In this regard, the applicant should clarify the following:

1. Whether the research project is being conducted within a scientific institution of the federal government, and

2. Why the project is not covered by the data protection exemption provision of § 2d para. 7 of the

Research Organization Act (FOG), BGBl. No. 341/1981 as amended (§ 7 para. 2 no. 1 DSG)?

Should the application be maintained, the following points must be addressed:

B) Missing evidence according to § 7 para. 3 DSG:

The following elements are missing for a legally compliant application according to § 7 para. 3 DSG:

1. Evidence that obtaining the consent of the affected persons is not possible due to their unavailability or would otherwise entail an unreasonable effort, for example, through information regarding the number and identifiability of the affected persons (§ 7 para. 3 no. 1 DSG);
2. Evidence or at least a credible assertion that there is a public interest in the requested processing (§ 7 para. 3 no. 2 DSG);
3. Evidence of the professional suitability of the applicant as the person responsible for the intended data processing, possibly also by providing the name of the scientific supervisor of the research project and their qualifications, if it concerns research for an academic thesis (§ 7 para. 3 no. 3 DSG);
4. The declaration signed by the authorized person regarding the data sets (presumably: the district administration N***) that they will make the data sets available to the applicant for the investigation (§ 7 para. 4 DSG).

Regarding the necessity of submitting an unrestricted declaration according to § 7 para. 4 DSG (formerly: § 46 para. 3a DSG 2000), see the decision of the Data Protection Authority dated November 24, 2017, GZ: DSB-D202.197/0003-DSB/2017 (publicly accessible in the Federal Legal Information System - RIS).

Please rectify these deficiencies by resubmitting the application with improvements or additions.

A deadline of three weeks from the receipt of this letter is set for the fulfillment of this deficiency rectification order. If no improvement is made, the application is to be rejected according to § 13 para. 3 of the General Administrative Procedure Act 1991 (AVG), potentially leading to its dismissal."

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3. This procedural order was delivered to the applicant on December 9, 2019, at the electronic delivery address she provided: erna.a***@b***uni.at. An electronic delivery confirmation is included in the file, and there is no error message from any mail server involved in the transmission.

B. Findings of Fact:

4. The Data Protection Authority bases its decision on the application presented above as well as the procedural course.

5. Evaluation of Evidence: These findings are derived from the contents of the administrative files of the Data Protection Authority (incoming document and procedural order in GZ: DSB-D202.241/0001-DSB/2019).

C. Legal Considerations:

C.1. Summary:

6. The application submitted is inadmissible, as the legally required proof has not been provided by the applicant, and furthermore, the legal prerequisites for the application (necessity of approval) are not met.

C.2. Purpose and Subject of Approval According to § 7 Abs. 3 DSG:

7. According to § 7 Abs. 3 DSG, the Data Protection Authority must grant approval for the processing of personal data for scientific or historical research purposes in the public interest under specifically defined conditions, if the processing cannot be based on one of the facts according to § 7 Abs. 1 and 2 DSG. Therefore, approval for access to files, other official documents, or archival materials can only be "approved" by the Data Protection Authority to the extent that it constitutes a step in the process of data processing according to Art. 4 Z 2 GDPR.

8. The subject of an approval under § 46 Abs. 3 DSG 2000 (now § 7 Abs. 3 DSG) can only be the approval for automated processing of data of living individuals by the researcher or the data protection-responsible client. This will be the case, for example, when data from an existing data application for other purposes is analyzed for research purposes or when personal data from (paper) files or archival materials is systematically recorded, compared, organized, or otherwise evaluated and used for research purposes (DSB, 24.11.2017, DSB-D202.197/0003-DSB/2017, RIS mwN).

C.3. Requirement of Proof According to § 7 Abs. 4 DSG:

9. The Data Protection Authority cannot compel a custodian of files, other official documents, or archival materials to grant access to a researcher. The information provided by the applicant, which states otherwise from the custodial authorities ("After consulting with the responsible authorities, I can access these documents upon receipt of a decision from your side") misinterprets the legal situation. This archival legal question must be clarified according to § 7 Abs. 4 DSG explicitly before an application is submitted, and a corresponding declaration of consent from the authorized disposer must be presented by the applicant to the Data Protection Authority. It follows that the submission of a corresponding declaration is a legal prerequisite for an application, and there is no official investigative procedure regarding the question of possible consent from the authorized disposer.

10. The applicant has not submitted such a declaration of consent, despite being requested to do so (see above, para. 2).

11. This is already sufficient to reject the application as inadmissible, as the legal prerequisites for its submission have not been fulfilled.

C.4. Exemption from the Approval Requirement for Research Projects According to § 2d Abs. 7 FOG:

12. The application is also inadmissible for a second reason.

13. The applicant, as a researcher, is, despite being an individual, a "scientific institution" within the meaning of the definition in § 2b Z. 12 FOG. According to § 2d Abs. 7 FOG, for scientific research based on Art. 9 Abs. 2 lit. j GDPR in the sense of § 7 Abs. 2 Z 1 DSG, obtaining approval from the Data Protection Authority according to § 7 Abs. 2 Z 3 DSG is not required if the processing is carried out in accordance with the 2nd section of the FOG. This means that if data is processed for research purposes, and the specific data protection regulations established in the last-mentioned section of the law are adhered to, no approval is required. Thus, a decisive prerequisite for granting such approval (§ 7 Abs. 2 Z. 3 DSG) is eliminated, as there is a data processing permitted under special legal provisions (§ 7 Abs. 2 Z. 1 DSG).

14. For this reason as well, the application was to be rejected.

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